

Key Takeaway: WIOA and IDD Systems

Since being signed into law in 2014, the Workforce Innovation and Opportunity Act (WIOA) has impacted state intellectual and developmental disability (IDD) systems and the way they interact with vocational rehabilitation (VR) agencies. States are addressing the new regulations to ensure compliance with both the language and the intent of the legislation.

While a state's VR system is ultimately responsible for implementing WIOA regulations, there are opportunities to collaborate with the state IDD agency to increase opportunities for individual competitive integrated employment. The state has a vested interest in the outcome of WIOA implementation, given the IDD system's ongoing relationship with individuals and families seeking supports.

- » The SELN has focused on Title Four of WIOA, which applies to state VR systems. This section of the law addresses opportunities for partnering with VR, including the sequence of services across systems, new employment definitions, and school-to-work transition requirements. The SELN has also addressed new restrictions on subminimum wage (Section 511).
- » The US Department of Labor's Wage and Hour Division and the Rehabilitation Services Administration are responsible for oversight of various parts of Section Four of WIOA. Monitoring will impact service providers by reinforcing what is expected under these regulations, and providers need to be clear on the consequences of not addressing the law.
- » State IDD systems should work alongside the VR system as they put Employment First principles into practice, and should establish expectations for publicly funded supports. IDD systems should also assist VR in upholding WIOA's Preamble.
- » Most state IDD agencies are revisiting service definitions to ensure compliance with various funding sources and federal regulations, including the way WIOA defines competitive integrated employment. Using similar terminology will benefit both the IDD and VR systems.
- » IDD system staff should be familiar with VR's responsibilities and service expectation outcomes, such as implementation of Section 511. This will allow IDD system staff to discuss roles and compromises, and to advocate for folks with IDD, not just for legal compliance.
- » Availability of VR's supported employment post-placement services has been increased from 18 to 24 months under WIOA, and can be extended in certain circumstances. This may promote a broader VR system role for individuals with IDD who would benefit from a longer time range for on-the-job supports.

SELN Hub members can navigate to the [Monthly Network Meeting groups page](#) for additional materials and discussion.

[Meeting Recording](#)

WIOA's Preamble "The foundation of the vocational rehabilitation program is the principle that individuals with disabilities, including those with the most significant disabilities, are capable of achieving high quality, competitive integrated employment when provided the necessary skills and supports."

For additional resources on WIOA, visit www.selnhub.org/wioa



State Employment Leadership Network

The SELN is a place for states to connect, collaborate, and create cross-community support regarding pressing employment-related issues at state and federal levels for individuals with developmental disabilities.

The SELN was launched in 2006 as a joint program of the National Association of State Directors of Developmental Disabilities Services and the Institute for Community Inclusion at the University of Massachusetts Boston.



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